

Justification and Approval – Simplified Acquisition under \$250,000

FACTS SUPPORTING A REQUEST TO ENTER INTO AN ACQUISITION USING OTHER THAN FULL AND OPEN COMPETITION – SIMPLIFIED ACQUISITION (UNDER \$150,000)

REQ no.	Requestor Christine Baker
Office Code	Phone no. (301) 435-8850

Introduction: Pursuant to FAR 13.106-1(b)(1)(i), the following information is furnished to the Contracting Officer to support the requisitioning office's request that the supplies/services identified on the referenced Requisition be obtained from a single source, as only one source is reasonably available under the circumstances of this acquisition.

In accordance with FAR 13.106-3, the basis for the absence of competition is documented in the contract file to support award under simplified acquisition procedures. The requisitioning office understands that award using other than full and open competition may only be made upon approval by the Contracting Officer.

1. Identification of the Agency: (HHS/NIH/NEI/ITMB)
2. Nature and or/Description of Action Being Approved. **Matlab maintenance and technical support**
3. Description of the supplies and services required to meet the Agency's needs:

MATLAB (matrix laboratory) is a multi-paradigm numerical computing environment and proprietary programming language developed by MathWorks. MATLAB allows matrix manipulations, plotting of functions and data, implementation of algorithms, creation of user interfaces, and interfacing with programs written in other languages used by NEI benchtop scientists.

The Government requires MATLAB software licenses and associated maintenance and technical support services to support ongoing scientific research activities at the National Eye Institute. These services include access to official MATLAB software updates and releases, worldwide technical support from specialized engineers, and access to MATLAB online services.

MathWorks, Inc. is the developer and owner of MATLAB and retains exclusive control over product functionality, licensing terms, software updates, and maintenance services.

4. Proposed Contractor's unique qualifications. (choose a letter below that makes the most sense for your requirement)

Proposed Contractor: **MathWorks, Inc.**

3 Apple Hill Drive

Natick, MA 01760-2098

- a. Replacement parts: N/A
- b. Equipment upgrade/repair: N/A
- c. Proprietary data: ***MathWorks, Inc. is the developer and sole manufacturer of MATLAB software and related proprietary toolboxes. The National Eye Institute currently relies on MATLAB to support ongoing scientific research activities, including the development and execution of validated analytical models, scripts, and workflows that are written exclusively in the MATLAB programming language.***

These existing MATLAB-based tools are integral to current research operations and are not compatible with alternative software without significant reengineering, retesting, and revalidation. Substitution with other numerical computing platforms would result in disruption to ongoing research, potential loss of reproducibility of prior results, and unacceptable delays to mission-critical scientific work.

While authorized resellers may distribute MATLAB licenses under certain contract vehicles, MathWorks, Inc. remains the sole manufacturer and the only entity that controls MATLAB software functionality, licensing, updates, and maintenance services. As such, MathWorks, Inc. is uniquely qualified to provide the required licenses and support services necessary to maintain continuity of operations.

- d. Urgency: N/A
- e. Brand Name only: N/A

5. Additional Supporting Facts.

MATLAB is a proprietary software product developed and owned by MathWorks, Inc. While MATLAB licenses may be distributed through authorized resellers under certain contract vehicles, MathWorks, Inc. remains the sole manufacturer and retains exclusive control over product functionality, licensing terms, software updates, and maintenance services.

Market research indicates that while other numerical computing tools exist, none

can meet the agency's minimum requirements without substantial modification to existing MATLAB-based systems. Transitioning to an alternative solution would require redevelopment of analytical models, retraining of personnel, and revalidation of scientific outputs, resulting in increased cost, unacceptable risk, and disruption to mission-critical research activities. Market research further confirmed that for Institute-Wide Licensing, MathWorks provides the lowest price and that procurement through authorized resellers would result in additional markup without providing any additional technical or contractual benefit.

Therefore, award to MathWorks, Inc. on an other-than-full-and-open competition basis is the only approach that satisfies the Government's minimum needs within the required timeframe.

I hereby certify that the supporting data above forms the basis for this justification, is complete and accurate to the best of my knowledge and belief.

Certification by Requirements\Technical Personnel:

John B. Dennis -S Digitally signed by John B. Dennis -S
Date: 2025.12.31 14:37:19 -05'00'

I concur and approve this justification for other than full and open competition.

Contracting Officer

Date